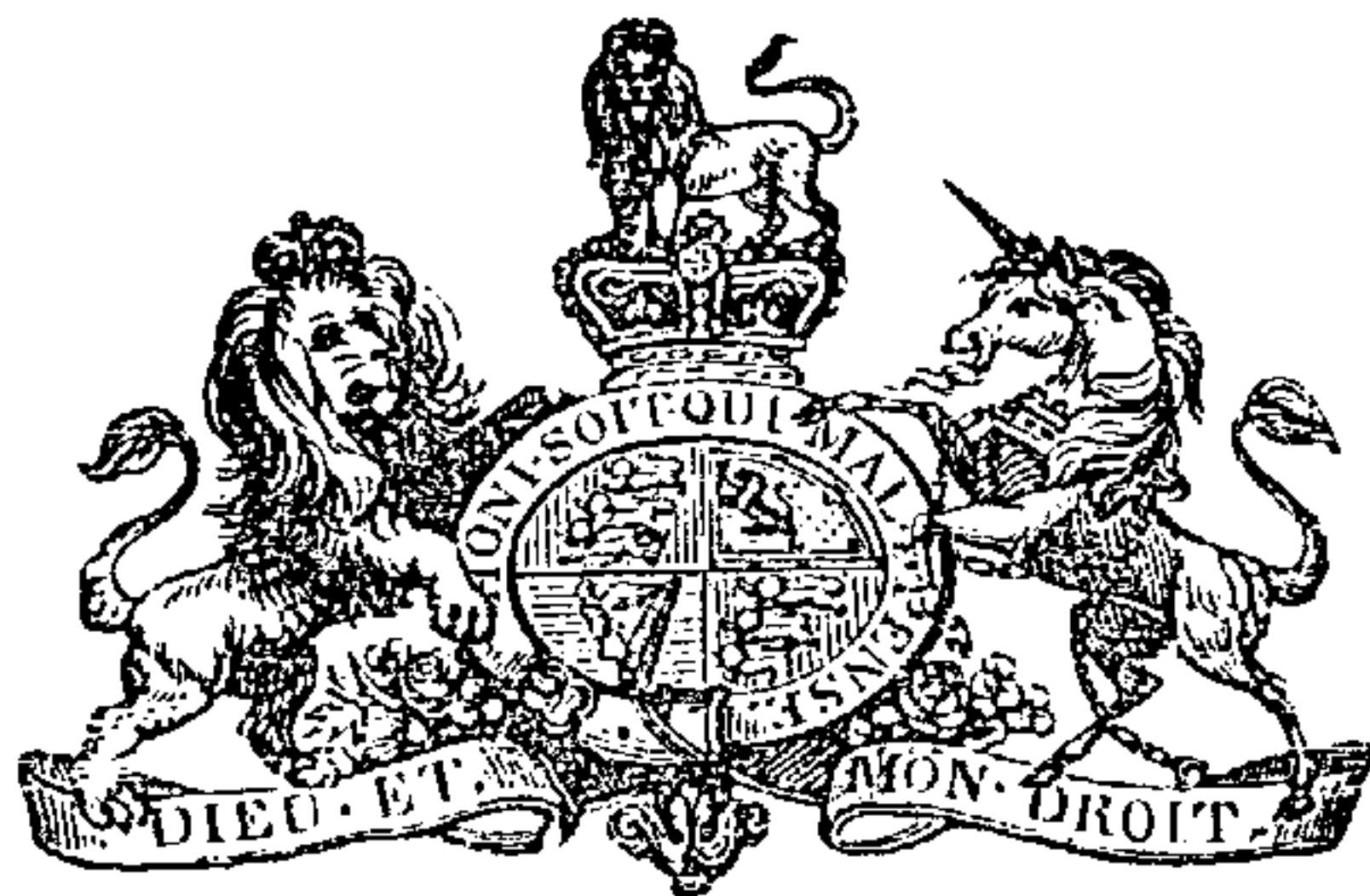




CHAPTER xv.

An Act to empower the Corporation of the City of London to widen London Bridge and for other purposes. A.D. 1901.
[2nd July 1901.]

WHEREAS the traffic over London Bridge has greatly increased and the widening of the said bridge would be of great local and public advantage :

And whereas the mayor and commonalty and citizens of the city of London (in this Act referred to as "the Corporation") are seised of or entitled to certain messuages lands tenements and hereditaments in the city of London and in the counties of London Surrey Kent and Essex (which are commonly called and are hereinafter referred to as "the Bridge House Estates") in trust for the maintenance and support of London Bridge Blackfriars Bridge and Southwark Bridge :

And whereas it is expedient to empower the Corporation to execute the works in this Act described for widening London Bridge and to raise the moneys necessary for defraying the expenses of such works on the credit of the said Bridge House Estates :

And whereas it is expedient to authorise the Corporation and the Conservators of the River Thames to enter into and carry into effect agreements relating to the objects of this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the city of London and for the county of London and are in this Act

A.D. 1901. — referred to as “the deposited plans and sections and books of reference” :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited as the London Bridge Widening Act 1901.

Corporation to execute Act by common council. 2. This Act shall be carried into execution by the Corporation acting by the mayor aldermen and commons of the city of London in common council assembled.

Incorporation. 3. The Lands Clauses Acts are except so far as the same are varied by or are inconsistent with the provisions of this Act incorporated with and form part of this Act.

Power to take and use certain lands. 4. Subject to the provisions of this Act the Corporation may enter upon take and use for the purposes of this Act all or any of the lands delineated on the deposited plans and described in the deposited books of reference.

Correction of errors &c. in deposited plans and books of reference. 5. If any omission misstatement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be described in the deposited plans or books of reference the Corporation may apply to two justices for the correction thereof after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction and if it appear to such justices that the omission misstatement or erroneous description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or erroneous description and such certificate shall be deposited with the respective clerks of the peace for the city of London and for the county of London and shall be kept by them along with the other documents to which it relates and subject and according to the same provisions as apply to those other documents and thereupon the deposited plans or books of reference shall be deemed to be corrected according to the certificate and the Corporation may enter upon take and use those lands accordingly.

Period for compulsory purchase of lands. 6. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

7.—(1) The Corporation shall not purchase acquire or appropriate under any of the powers of this Act or for any of the purposes of this Act twenty or more houses or sites of houses in the administrative county of London which at any time within five years before the passing of this Act have been or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers.

A.D. 1901.
Restriction
on taking
houses of
labouring
class.

(2) If the Corporation purchase acquire or appropriate any house or site under the powers of this Act or for any of the purposes of this Act in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds for every such house or site which penalty shall be recoverable by the Secretary of State for the Home Department by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

8. The Corporation may in the lines and according to the levels shown on the deposited plans and sections make and maintain together with all necessary and proper works and conveniences connected therewith—

Power to
widen bridge.

(1) A widening of London Bridge on each side thereof such widening to commence in Adelaide Place at or near to the top of the stairs leading from Adelaide Place to the River Thames at the northern end of London Bridge and to terminate at or near to the top of the stairs leading from the northern end of Borough High Street to the River Thames at the southern end of London Bridge:

(2) A widening to an extent not exceeding twenty inches or thereabouts on each side thereof of the bridge (herein-after referred to as "Thames Street Bridge") carrying King William Street over Upper and Lower Thames Streets in the said parishes of Saint Michael Crooked Lane and Saint Magnus the Martyr within the city of London or one of them.

A.D. 1901.

Subsidiary
or incidental
works.

9. For the purposes of or in connexion with the widening by this Act authorised of London Bridge or as the case may be of Thames Street Bridge the Corporation may throw parts of the existing footways of the respective bridge into the roadway of the bridge and may remove the sidewalks parapets and recesses of the bridge and may (but not to any greater extent than shown on the deposited plans and sections) alter the present carriageway footways and structure of the bridge as well as any roads sewers drains telegraph telephone and electric wires and pipes gas and water mains and pipes and other property so far as may be necessary or expedient in carrying into execution the before-mentioned works and powers The Corporation may also close and stop up temporarily during the widening of London Bridge and permanently after the completion of the widening so much and such parts of the stairs leading from the River Thames to London Bridge on each side and at each end of the bridge as it may be necessary to alter close or stop up temporarily or permanently as the case may be :

Provided that the Corporation shall not alter any telegraph wires pipes or other property of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Temporary
powers.

10. During the execution of the widening of London Bridge the Corporation may erect and maintain temporarily a footbridge or footbridges over the River Thames on each or either side of the bridge and may place and keep temporarily in the said river piles fenders and booms at or near the existing piers and abutments of the bridge and at or near any works or erections to be made or put up by the Corporation for or connected with the construction of the widening or the temporary footbridge or footbridges aforesaid and may close temporarily any arch or arches of the bridge but for such period or periods only in each case as shall be requisite for the execution of the works by this Act authorised.

Power to moor
or anchor
vessels in the
river with
consent of
Conservators.

11. The Corporation may with the consent of the Conservators at any time during the construction of the works by this Act authorised moor or anchor or cause to be moored or anchored vessels barges lighters or other craft in the River Thames.

Plans of
temporary
work affect-
ing Thames
to be ap-
proved by
Conserva-
tors.

12. No temporary work which may be necessary to enable the works by this Act authorised to be constructed shall be commenced in or over the River Thames until the plans of such temporary work shall have been submitted to and approved by the Conservators of the River Thames (hereinafter referred to as "the Conservators.")

A.D. 1901.

of the bridge shall not be exercised except with the consent in writing of the Conservators under the hand of their secretary and any such consent may be subject to such terms and conditions as the Conservators may deem necessary or expedient for the protection of the River Thames :

(E) The Corporation shall not make or commence any work on the bed soil or foreshore of the River Thames without the consent in writing of the Conservators under the hand of their secretary until the expiration of one calendar month after notice to the Conservators :

(F) The Corporation shall not (except as far as shall be necessary in the construction of the widening and works connected therewith) take any gravel soil or other material from the bed of the river without the previous consent of the Conservators in writing under the hand of their secretary.

Certain differences to be referred to an arbitrator to be appointed by Board of Trade.

16. If any difference arise between the Corporation and the Conservators as to any matter or thing affecting the plans or the mode of constructing the works or temporary works by this Act authorised such difference shall be referred to an arbitrator to be appointed on the application of either party by the Board of Trade.

Power to deviate.

17. Subject to the provisions of this Act in making the widening of London Bridge the Corporation may deviate to an extent not exceeding two feet either upwards or downwards from the levels defined on the deposited sections and may deviate laterally from the line of any of the works by this Act authorised within the limits of deviation defined on the deposited plans.

For protection of City of London Electric Lighting Company Limited.

18. Nothing in this Act shall extend to or authorise any interference with any works of the City of London Electric Lighting Company Limited except in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and section 16 of the City of London (East District) Electric Lighting Order 1890.

For protection of Gas Light and Coke Company.

19. For the protection of the Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall have effect (that is to say) :—

(A) All works matters or things which under the provisions of the Railways Clauses Consolidation Act 1845 or this Act the Corporation may be empowered or required to do or execute with reference to the mains pipes syphons or other works of the gas company shall be done and executed by and at the cost of the Corporation but to the reasonable satisfaction and under the direction of and in such manner as shall be required.

13. The Corporation shall within fourteen days after notice in writing from the Conservators so to do remove any materials or temporary works which may have been placed in the River Thames by the Corporation and on their failing so to do the Conservators may remove the same charging the Corporation with the expense of so doing and the Corporation shall forthwith repay to the Conservators all expenses so incurred Provided that where such materials or temporary works have been so placed for the purpose of constructing any permanent work authorised by this Act the Corporation shall not be required to remove the same until after such permanent work shall have been completed.

A.D. 1901.
Removal of temporary works and materials.

14. During the execution of the works and after the completion thereof the Corporation shall hang out or exhibit thereat or near thereto every night from sunset to sunrise such and so many lighted lamps proper and sufficient for the navigation and safe guidance of vessels as the Conservators shall from time to time require or approve of in writing and such lamps shall be hung out or exhibited in such manner and be so placed and used as shall from time to time be required or approved of in writing by the Conservators.

Lights to be kept burning on London Bridge.

15. For the protection of the Conservators the following provisions shall notwithstanding anything contained in this Act or shown upon the deposited plans have effect (that is to say) :—

For protection of Conservators.

- (A) The Corporation shall not permanently acquire or take any portion of the bed soil or foreshore of the River Thames without the previous consent in writing of the Conservators under the hand of their secretary but shall acquire an easement only in such bed soil or foreshore :
- (B) The compensation payable to the Conservators in respect of any easement so acquired by the Corporation in the bed soil or foreshore of the River Thames shall be assessed in accordance with the provisions of section 116 of the Thames Conservancy Act 1894 or any statutory provision in lieu thereof for the time being in force :
- (C) The Corporation shall not interfere in any way directly or indirectly with the steamboat piers gangways dolphins or other property vested in the Conservators except with the consent in writing of the Conservators under the hand of their secretary :
- (D) The powers conferred upon the Corporation by this Act with respect to the closing temporarily of any arch or arches

by the engineer for the time being of the gas company and such works matters or other things shall not be commenced until after fourteen days' previous notice thereof in writing shall have been given to the gas company and the Corporation shall not lay down any such mains pipes syphons or other works contrary to the regulations of any Act of Parliament relating to the gas company. Provided always that if the gas company shall elect themselves to execute any portion of the works matters and things which the Corporation may by this Act be empowered or required to do or exercise with reference to or affecting the mains pipes syphons apparatus or other works of the gas company and of such their election shall give seven days' notice in writing to the Corporation by leaving the same at their head office the gas company may themselves execute that portion of the said works matters and things and the reasonable expense of and incident to the executing the same shall be repaid by the Corporation to the gas company on demand :

- (B) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the gas company all costs losses damages and expenses which may be occasioned to the gas company or to any of their mains pipes syphons apparatus property works and conveniences (including any loss of gas or interruption in the supply of gas by the gas company and all injury or loss by explosion or otherwise) through by reason of or consequent on the execution user or failure of any of the intended works or through by reason of or consequent on any act or omission of the Corporation or of any of their contractors agents workmen or servants or any of the persons in their employ or in the employ of their contractors or others or by reason of or consequent on any subsidence caused by the Corporation or any works authorised by this Act to be done by the Corporation and the Corporation will effectually indemnify and hold harmless the gas company from all claims and demands upon or against them by reason of such execution or failure or of any such act or omission or subsidence or matter or thing aforesaid.

20. The works by this Act authorised shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act conferred upon the Corporation for executing the works or otherwise in relation thereto shall cease to be exercised except as to so much thereof as is then completed.

Period for completion of works.

A.D. 1901.

Power to
borrow
money on
credit of
Bridge
House
Estates.

21. The Corporation may from time to time borrow for the purposes of this Act any sum or sums of money not exceeding in the whole one hundred thousand pounds on the credit of the Bridge House Estates and of the estates and revenues of the Corporation subject however to any charges to which the same are subject previous to the time of the borrowing of such sum or sums respectively.

Application
of surplus
rents and
profits of
Bridge
House
Estates.

22. The Corporation may apply the surplus rents and profits of the Bridge House Estates after making the payments required to be made thereout by section 65 of the Corporation of London (Tower Bridge) Act 1885 in execution of the works by this Act authorised and in payment of interest on money borrowed under this Act and in discharge of principal moneys borrowed under this Act.

Money may
be borrowed
in substitu-
tion of sums
paid off.

23. Whenever and as often as it may be considered expedient or become necessary to call in or pay off any portion of the moneys raised by the Corporation under the authority of this Act the Corporation may from time to time in manner aforesaid borrow other moneys required for the purpose of paying off the moneys which it may have become expedient or necessary to call in or pay off Provided that the total amount borrowed under the authority of this Act and remaining unpaid shall not at any one and the same time exceed in the whole the amount by this Act authorised to be borrowed.

Form of
bond.

24. All moneys borrowed under the authority of this Act may be secured by bonds under the common seal of the Corporation in such form as the Corporation may from time to time deem expedient and shall be assignable by indorsement.

Persons pay-
ing money to
Corporation
not to be
liable for
misapplica-
tion.

25. Any person paying to the Corporation or to any person appointed by them to receive the same any sum of money by virtue of this Act shall not be answerable or accountable for the nonapplication or misapplication thereof.

Power to
borrow
under Local
Loans Act
1875.

26. The Corporation if they think fit in lieu of borrowing on the security of bonds as hereinbefore authorised may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures debenture stock or annuity certificates or partly in one way and partly in another and the Corporation shall for the purposes of the said Act and the exercise of the powers of borrowing money by this Act conferred be deemed to be

a local authority within the meaning of the same term as defined by the Local Loans Act 1875. A.D. 1901.

Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the estates and revenues on the credit of which the Corporation are authorised by this Act to raise moneys and such estates and revenues shall be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

Every such loan shall be discharged within the period of sixty years after the raising of the same and such discharge or any part thereof shall be effected by means of a sinking fund if the Corporation shall so think fit And if the Corporation at any time think fit to form any such sinking fund all sums paid into the same shall as soon as may be be invested by the Corporation in any manner in which trustees are by law for the time being authorised to invest trust moneys.

27. The Corporation may at any time and from time to time purchase any bond debenture debenture stock annuity certificate or other security granted or issued by the Corporation under the authority of this Act and for the time being in force from the holder thereof and may cancel the same when so purchased and as from the date of such cancellation such bond debenture debenture stock annuity certificate or other security shall become and be void and of no effect.

Power to Corporation to purchase and cancel securities under this Act.

28. The chamberlain of the city of London shall at all times provide and keep one or more book or books in which all moneys received by virtue of this Act shall from time to time as the same are paid be entered and set down in a separate account and wherein all the moneys paid and disbursed out of the moneys so received shall from time to time be entered and set down and such entry shall express the time when the occasion for which and the names of the persons to whom the same shall be paid.

Chamberlain to keep accounts of receipts and disbursements.

29. The chamberlain of the city of London shall yearly lay before each House of Parliament a true account of the receipts and application of all moneys which may be received by virtue of this Act.

Chamberlain to lay an account before Parliament.

30. The Corporation may from time to time appoint a committee to manage and transact all or any of the matters or purposes which the Corporation are by this Act empowered to do execute or perform other than the borrowing of money or the affixing of the common seal of the Corporation to any bond for securing money borrowed and such committee shall have such or

Power to appoint a committee to carry the Act into execution.

A.D. 1901. — so many of the powers and authorities and discretion by this Act given to and reposed in the Corporation as the Corporation shall think fit or proper to delegate to such committee.

Disqualifi-
cation as
justice of
aldermen
members of
committee.

31. An alderman of the city of London if and so long as he is a member of the committee appointed to manage the execution of this Act shall be disqualified from acting as a justice in and for the city of London for any purpose of this Act but he shall not be disqualified unless he is a member of that committee:

Agreements
with Conser-
vators of
River
Thames.

32. The Corporation and the Conservators may enter into and carry into effect agreements with respect to the execution of any of the objects and purposes of this Act.

Saving
rights of
Conserva-
tors.

33. Except as by this Act expressly provided nothing contained in this Act shall extend to or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the Conservators or to prohibit defeat alter or diminish any powers authority or jurisdiction which at the time of passing this Act the Conservators did or might lawfully claim use or exercise.

Costs of Act.

34. All costs charges and expenses of and incidental to the applying for obtaining and passing of this Act and of carrying the same into execution shall be paid by the Corporation out of the rents and profits of or the moneys raised on the credit of the Bridge House Estates.

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